

**OFFICE OF THE SECRETARY**

P.O. Box 942883  
Sacramento, CA 94283-0001



October 1, 2018

Honorable Steven G. Counelis  
Judge of the Superior Court  
County of Riverside  
4100 Main Street  
Riverside, CA 92501

Re: Sandoval, Alberto  
CDC No.: AZ7789  
Case No.: RIF1400926  
Date of Sentence: 4/21/2016

Dear Honorable Steven G. Counelis:

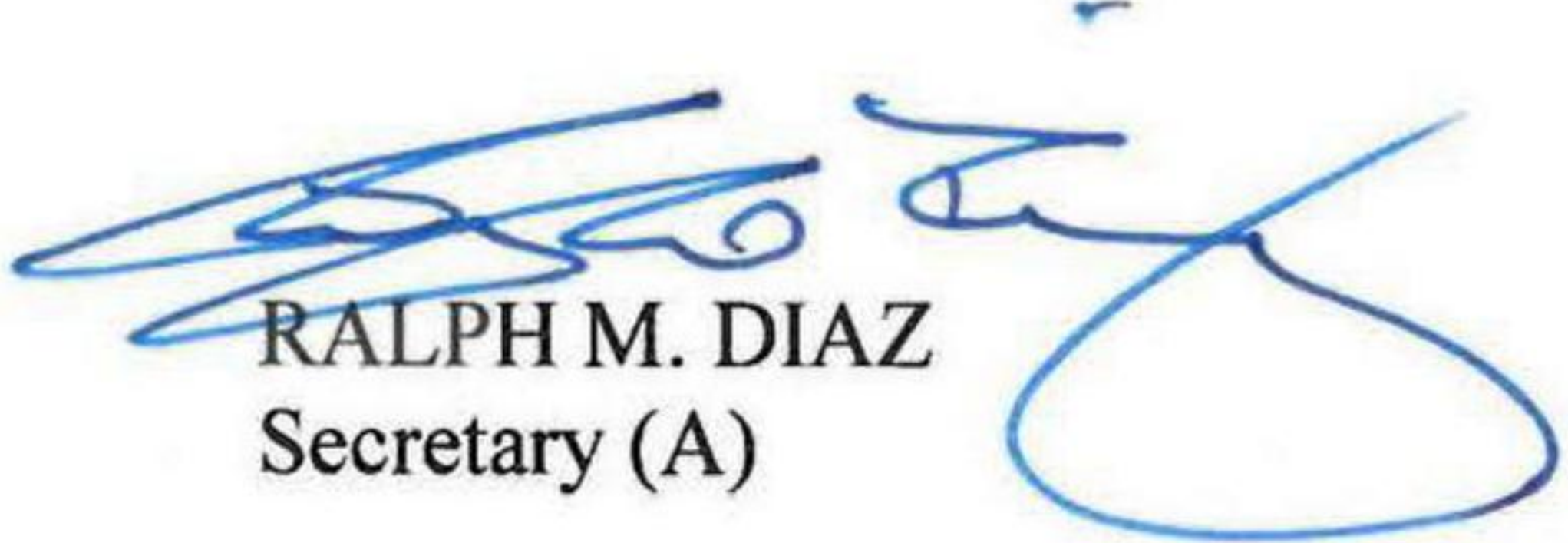
The purpose of this letter is to provide the court with authority to resentence Alberto Sandoval pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Sandoval was sentenced in 2016, and was convicted of section 245, subdivision (A)(4), Assault of a person by mean. The trial court sentenced inmate Sandoval on 4/21/2016. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Sandoval's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Sandoval's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

  
RALPH M. DIAZ  
Secretary (A)

Enclosures:  
Abstract of Judgment-Prison Commitment-Determinate  
Minute Order  
Information/Complaint

cc: Honorable Becky Lynn Dugan, Riverside County Presiding Judge  
Riverside District Attorney  
Public Defender



**FELONY ABSTRACT OF JUDGMENT—DETERMINATE**  
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

|                                                                                                                                                                                                                               |                              |                                                                                      |                 |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|--------------------------------------------------------------------------------------|-----------------|
| SUPERIOR COURT OF CALIFORNIA, COUNTY OF:<br><b>RIVERSIDE</b>                                                                                                                                                                  |                              |                                                                                      |                 |
| PEOPLE OF THE STATE OF CALIFORNIA vs.<br>DEFENDANT:<br><b>ALBERTO SANDOVAL</b> ✓<br>AKA: <b>ALBERT SANDOVAL</b><br>CII NO.: <b>A25780049</b><br>BOOKING NO.: <b>201408880</b> <input checked="" type="checkbox"/> NOT PRESENT |                              | DOB: <b>09/30/1992</b>                                                               | RIF1400926 ✓ -A |
|                                                                                                                                                                                                                               |                              |                                                                                      | -B              |
|                                                                                                                                                                                                                               |                              |                                                                                      | -C              |
| FELONY ABSTRACT OF JUDGMENT<br><input checked="" type="checkbox"/> PRISON COMMITMENT <input type="checkbox"/> COUNTY JAIL COMMITMENT <input checked="" type="checkbox"/> AMENDED ABSTRACT                                     |                              | 1st                                                                                  | -D              |
| DATE OF HEARING<br><b>04/21/2016</b>                                                                                                                                                                                          | DEPT. NO.<br><b>43</b>       | JUDGE<br><b>Steven G. Councilis</b> ✓                                                |                 |
| CLERK<br><b>F. Carrasco</b>                                                                                                                                                                                                   | REPORTER<br><b>C. DiCaro</b> | PROBATION NO. OR PROBATION OFFICER <input type="checkbox"/> IMMEDIATE SENTENCING     |                 |
| COUNSEL FOR PEOPLE<br><b>Francisco Navarro</b>                                                                                                                                                                                |                              | COUNSEL FOR DEFENDANT<br><b>DPD- Greg Roach</b> ✓ <input type="checkbox"/> APPOINTED |                 |

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment  
\_\_\_\_\_ (number of pages attached)

☐ Additional counts are listed on attachment  
 \_\_\_\_\_ (number of pages attached)

| COUNT | CODE | SECTION NO. | CRIME                        | YEAR CRIME COMMITTED | DATE OF CONVICTION (MO./DATE/YR.) | CONVICTED BY |       |      | TERM (L, M, Y) | CONCURRENT | 1/3 CONSECUTIVE | CONSECUTIVE FULL TERM | INCOMPLETE SENTENCE (REFER TO Rpt 5) | 654 STAY | SERIOUS FELONY | VIOLENT FELONY | PRINCIPAL OR CONSECUTIVE TIME IMPOSED |      |
|-------|------|-------------|------------------------------|----------------------|-----------------------------------|--------------|-------|------|----------------|------------|-----------------|-----------------------|--------------------------------------|----------|----------------|----------------|---------------------------------------|------|
|       |      |             |                              |                      |                                   | JURY         | COURT | PLEA |                |            |                 |                       |                                      |          |                |                | YRS.                                  | MOS. |
| 1     | PC   | 211*        | 1st Robbery (Not in concert) | 2014                 | 01 / 28 / 16                      | X            |       |      | U              |            |                 |                       |                                      |          |                |                | 6                                     | 0    |
| 2     | PC   | 211*        | 1st Robbery (Not in concert) | 2014                 | 01 / 28 / 16                      | X            |       |      | M              |            | X               |                       |                                      |          |                |                | 1                                     | 4    |
| 3     | PC   | 459*        | 1st Burglary                 | 2014                 | 01 / 28 / 16                      | X            |       |      | U              |            |                 |                       |                                      | X        |                |                |                                       |      |
| 4     | PC   | 245(A)(4)   | Assault of a person by mean  | 2014                 | 01 / 28 / 16                      | X            |       |      | M              |            | X               |                       |                                      |          |                |                | 1                                     | 0    |
| 5     | PC   | 422         | Criminal Threats Death/GBI   | 2014                 | 01 / 28 / 16                      | X            |       |      | M              |            | X               |                       |                                      |          |                |                | 0                                     | 8    |
| 6     | PC   | 245(A)(4)   | Assault of a person by mean  | 2014                 | 01 / 28 / 16                      | X            |       |      | M              |            | X               |                       |                                      |          |                |                | 1                                     | 0    |

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

| COUNT | ENHANCEMENT        | TIME IMPOSED, "S," or "PS" | ENHANCEMENT   | TIME IMPOSED, "S," or "PS" | ENHANCEMENT   | TIME IMPOSED, "S," or "PS" | TOTAL |
|-------|--------------------|----------------------------|---------------|----------------------------|---------------|----------------------------|-------|
| 1     | 186.22(B)(1)(C) PC | 10                         | 667.9(A) PC   | 1                          | 12022.7(C) PC | 5                          | 16 0  |
| 2     | 186.22(B)(1)(C) PC | 3 yr 4 mo                  | 667.9(A) PC   | 4 mo                       | 12022.7(C) PC | 1 yr 8 mo                  | 5 4   |
| 3     | 186.22(B)(1)(C) PC | S                          |               |                            |               |                            |       |
| 4     | 186.22(B)(1)(C) PC | 3 yr 4 mo                  | 12022.7(C) PC | 1 yr 8 mo                  |               |                            | 5 0   |
| 5     | 186.22(B)(1)(B) PC | 1 yr 8 mo                  |               |                            |               |                            | 1 8   |
| 6     | 186.22(B)(1)(A) PC | 1 yr 4 mo                  | 12022.7(C) PC | S                          |               |                            | 1 4   |

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

| ENHANCEMENT | TIME IMPOSED, "S," or "PS" | ENHANCEMENT | TIME IMPOSED, "S," or "PS" | ENHANCEMENT | TIME IMPOSED, "S," or "PS" | TOTAL |
|-------------|----------------------------|-------------|----------------------------|-------------|----------------------------|-------|
| 667.5(B) PC | 1                          | 667.5(B) PC | 1                          | 667.5(B) PC | 1                          | 3 0   |
|             |                            |             |                            |             |                            |       |
|             |                            |             |                            |             |                            |       |
|             |                            |             |                            |             |                            |       |

4. Defendant sentenced ☐ to county jail per 1170(h)(1) or (2)

☒ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement

☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)

☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

| COUNTY | CASE NUMBER |
|--------|-------------|
|        |             |
|        |             |
|        |             |

6. TOTAL TIME ON ATTACHED PAGES: \_\_\_\_\_

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: **42** **4**

Attachments may be used but must be referred to in this document.



PEOPLE OF THE STATE OF CALIFORNIA vs.  
 DEFENDANT: ALBERTO SANDOVAL

RIF1400926 -A -B -C -D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$ 5000.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 5000.00 per PC 1202.45 suspended unless parole is revoked.  
 \$ per PC 1202.44 is now due, probation having been revoked.  
 Case B: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.  
 \$ per PC 1202.44 is now due, probation having been revoked.  
 Case C: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.  
 \$ per PC 1202.44 is now due, probation having been revoked.  
 Case D: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.  
 \$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ 1360.00 ☐ Amount to be determined to ☒ victim(s)\* ☐ Restitution Fund  
 Case B: \$ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
 Case C: \$ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
 Case D: \$ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
☐ \*Victim name(s), if known, and amount breakdown in item 13, below. ☐ \*Victim name(s) in probation officer's report.

c. Fines:

Case A: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
 Case B: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
 Case C: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
 Case D: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$240.00 per PC 1465.8. e. Conviction Assessment: \$180.00 per GC 70373 f. Other: \$ per (specify):

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☒ other (specify): 296(A) PC DNA Specimen

11. REGISTRATION REQUIREMENT: ☐ per (specify code section):

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify):

Any disputes as to amount to be resolved in court hearing.

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.  
 Defendant's race/national origin: Hispanic

15. EXECUTION OF SENTENCING IMPOSED

- a. ☐ at initial sentencing hearing  
 b. ☐ at resentencing per decision on appeal  
 c. ☐ after revocation of probation  
 d. ☐ at resentencing per recall of commitment (PC 1170(d).)  
 e. ☒ other (specify): Hearing re: Incorrect fines 08/02/2016

16. CREDIT FOR TIME SERVED

| CASE                     | TOTAL CREDITS | ACTUAL                           | LOCAL CONDUCT |
|--------------------------|---------------|----------------------------------|---------------|
| A                        | 919           | 799                              | 120           |
| B                        |               |                                  |               |
| C                        |               |                                  |               |
| D                        |               |                                  |               |
| Date Sentence Pronounced |               | Time Served in State Institution |               |
| 04 21 2016               |               | DMH                              | CDC CRC       |

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation  
☐ county jail ☒ other (specify): Remains Remanded

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE: [Signature] DATE: 08/04/2016